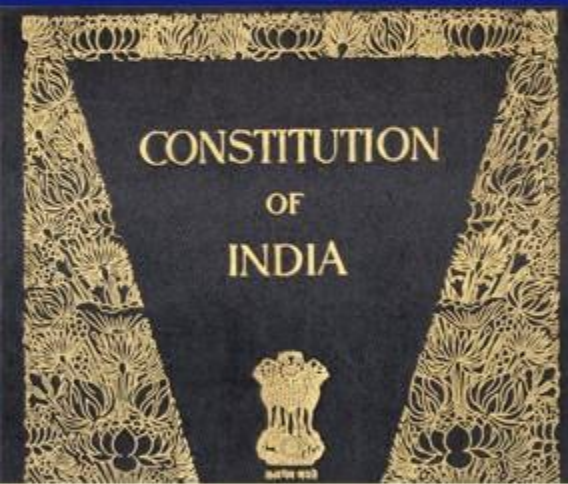


INDIAN POLITY



MODULE - 2

THE HISTORICAL BACKGROUND

- REGULATING ACT OF 1773
- PITT'S INDIA ACT OF 1784

CHAPTER 1**THE HISTORICAL
BACKGROUND**

UTILITY OF HISTORICAL RETROSPECT



- 1** The very fact that the Constitution of Indian republic is the **product of the research and deliberations of a body of eminent representatives** of the people makes a retrospect of the Constitutional development indispensable for a proper understanding of this Constitution.
- 2** Practically, the only respect in which the Constitution of 1949 differs from the constitutional documents of the preceding two centuries is that **while the latter had been imposed by an imperial power, the republican Constitution was made by the people themselves** through representatives of sovereign constituent assembly.

UTILITY OF HISTORICAL RETROSPECT

Chronological order of various Acts:

1. Regulating Act of 1773
2. Pitt's India Act of 1784
3. Charter Act of 1813
4. Charter Act of 1833
5. Charter Act of 1853
6. Government of India Act of 1858
7. Indian Councils Act of 1861
8. Indian Councils Act of 1892
9. Indian Councils Act of 1909
10. Government of India Act of 1919
11. Government of India Act of 1935
12. Indian Independence Act of 1947

4 This explains the majesty and the ethical value of this Constitution

5 Certain events in the British rule laid down the legal framework and administration of the present day India

6 They are explained here in this chapter in a chronological order

INTRODUCTION

1600-1947

BRITISH

1600-1773

Trading
Company

1773-1858

Company
Rule

1858-1947

Crown
Rule

1

The British came to India in 1600 as traders in the form of **East India Company** which had the exclusive right of trading in India under a Charter granted by Queen Elizabeth I.

2

In the year 1765, the East India Company which till now had purely trading functions obtained the “diwani” i.e, the rights over revenue and civil justice of Bengal, Bihar and Orissa.

3

In 1858, in the wake of “Sepoy Mutiny”, the **British Crown** assumed direct responsibility for the Governance of India.

REGULATING ACT OF 1773

OBJECTIVES BEHIND 1773 ACT

- 1 Controlling and Regulating the affairs of the East India Company was important.
- 2 Extreme corruption was prevalent in the company's servants which needed to be removed.
- 3 Recognizing for the first time Political and Administrative functions of the East India Company.
- 4 Laid down the foundations of central administration in India.
- 5 This Act permitted the company to retain its territorial possessions in India but sought to regulate the activities and functioning of the company. It did not take over power completely, hence called 'regulating'.

REGULATING ACT OF 1773

FEATURES OF THE ACT

- 1 It designated the Governor of Bengal as the **Governor General of Bengal** and created an **Executive Council** of four members to assist him.
- 2 The first such Governor General was **Warren Hastings**.
- 3 It made the **Governors of Bombay and Madras Presidencies** subordinate to the Governor General of Bengal.
- 4 It provided for the establishment of the **Supreme Court at Calcutta**.
- 5 It prohibited the servants of the company from engaging in any private trade or any accepting presents or **bribes from the 'natives'**
- 6 It strengthened the control of British Government over the company by requiring the **Court of Directors** which is the Governing body of the company to report on its revenue, civil and military affairs in India.

REGULATING ACT OF 1773

DEFECTS IN THE REGULATING ACT, 1773

- 1 The Act rendered the Governor General powerless because he had no veto power.
- 2 The presidencies of Bombay and Madras continued to Act on their discretion on pretext of emergencies. They also continued wars and alliances without caring in the least bit to report to the Presidency of Bengal.
- 3 The provisions regarding the Supreme Court were vague and defective.
- 4 Lastly, there was nothing in the Act which could address the grievances of the people of Bengal, Bihar and Orissa, who were dying in starvation.

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REGULATING ACT OF 1773

ANALYSIS OF THE
REGULATING ACT OF 1773

- 1 The British realized the need to regulate the Company affairs and thus enacted the first important Parliamentary Act, which is the Act of 1773.
- 2 This Act made changes to the Court of Directors in the Company and subjected their actions to the supervision of the British Government.
- 3 The Regulating Act, however, soon broke down. In practice, it had not given the British Government effective and decisive control over the Company.
- 4 In India, it had placed the Governor General at the mercy of his Council.
- 5 Three of the Councillors could combine and outvote the Governor-General on any matter.

REGULATING ACT OF 1773

ANALYSIS OF THE
REGULATING ACT OF 1773

- 6 In practice, Warren Hastings, the first Governor-General under the Act, and three of his Councillors quarrelled incessantly, often creating deadlocks in the administration.
- 7 The Governor General's control over the other two presidencies also proved inadequate in practice.
- 8 Most important of all the Act had failed to resolve the conflict between the Company and its opponents in England, who were daily growing stronger and more vocal.
- 9 Moreover, the Company remained extremely vulnerable to the attacks of its enemies as the administration of its Indian possessions continued to be corrupt, oppressive, and economically disastrous.

PITT'S INDIA ACT OF 1784

FEATURES OF THE ACT

The next important Act was Pitt's India Act of 1784 which was introduced in the British Parliament by then **Prime Minister William Pitt**

- 1 It distinguished between the **commercial and political functions** of the company.



WILLIAM PITT

- 2 It allowed the Court of Directors to manage the commercial affairs and created a new body called a **Board of Control** to manage the political affairs.
- 3 Thus, it established the system of **double Government**.
- 4 It empowered the Board of Control to supervise and direct all operations of military and civil Government or the revenues of British possessions in India.

PITT'S INDIA ACT OF 1784

ANALYSIS OF PITT'S INDIA ACT OF 1784

- 1 The defects of the Regulating Act and the exigencies of British politics led to the passing of the Pitt's Act.
- 2 The Act was significant for two reasons:
 - a) The company's territories in India, where for the first time called the British Possessions in India.
 - b) The British Government was given the supreme control over company affairs and administration in India
- 3 It established six Commissioners for the affairs of India, popularly known as the Board of Control, including two Cabinet Ministers.
- 4 The Board of Control was to guide and control the work of the Court of Directors and the Government of India.

PITT'S INDIA ACT OF 1784

ANALYSIS OF PITT'S INDIA ACT OF 1784

- 5 The Act placed the Government of India in the hands of the Governor-General and Council of three, so that if the Governor-General could get the support of even one member, he could have his way.
- 6 The Act clearly subordinated the Bombay and Madras Presidencies to Bengal in all questions of war, diplomacy, and revenues.
- 7 With this Act, began a new phase of the British conquest of India.
- 8 By now, it was evident that British National Policy in India was made to serve the interests of all sections of the ruling classes of Britain.
- 9 The Company having saved its monopoly of the Indian and Chinese trade was satisfied.
- 10 Its Directors retained the profitable right of appointing and dismissing its British officials in India.

PITT'S INDIA ACT OF 1784

FAILURES OF PITTS
INDIA ACT, 1784

- 1 The Pitt's India Act was deemed a failure. This was because the boundaries between Government control and the company's powers were nebulous and highly subjective.
- 2 The Board of Control was alleged for Nepotism.
- 3 The Act did not clearly define the boundaries between the Board of Control, Court of Directors and the Governor General in Council.

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